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PHIL 226 - Biomedical Ethics

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Amidst the ongoing discussions surrounding the overturning of *Roe v. Wade*, the perspectives, concerns, and unique circumstances of women with disabilities are often overlooked. The news article, “For People With Disabilities, Losing Abortion Access Can Be a Matter of Life or Death”, written and published by Jaime Ducharme in *TIME* magazine, sheds light on the ethical dimensions of abortion access for individuals with disabilities. The story covers the potential risks and challenges faced by disabled women during pregnancy and emphasizes the importance of preserving their access to essential medical care, especially the option of terminating a pregnancy. It explores ethical concepts such as autonomy and the common good, and calls for policies that prioritize the wellbeing and autonomy of disabled individuals. The article also addresses the difficulties faced by disabled individuals in accessing abortion care, such as limited transportation options for those with mobility issues and the lack of healthcare providers trained to cater to their specific needs. The author interviewed four women, each with unique illnesses or health concerns and explored the impact of pregnancy on their well-being—whether this pregnancy may entail direct bodily harm or not. The author emphasizes the threat to bodily autonomy posed by abortion bans and the potential exacerbation of challenges faced by disabled individuals due to limited access to healthcare providers and services.

The news article touches upon several ethical concepts, though not explicitly stated, in the context of abortion as a healthcare issue. One of the key ethical concepts underlined is bodily autonomy, specifically, the autonomy of disabled individuals. The major concern the article addresses is the restriction of access to abortion for women with disabilities, which is a direct infringement of their right to make decisions about their own body, their life, and their future. By enacting policies that limit abortion access, particularly without exemptions for individuals whose disabilities or underlying health conditions pose a direct threat to their well-being upon conception or pregnancy, the opportunity to maintain complete control over one's health and reproductive choices is fully denied.

The concept of bodily autonomy also raises questions about the permissibility of abortion. Drawing from course content and class discussions, the notion that women are not duty-bound or responsible for the well-being and nourishment of the fetus was presented through a series of Judith Jarvis Thomson's analogies. From the article, two of the interviewed women have an increased likelihood of experiencing health complications upon conception due to their disability. This emphasizes the importance of prioritizing the woman's overall health, making a case for the permissibility and accessibility of abortion. In this context, although not directly stated, the author argues that abortion should be considered permissible as the well-being of disabled pregnant women should take precedence over the fetus'.

In addition to bodily autonomy and permissibility of abortion, other ethical concepts explored are the notions of the common good and utilitarianism. The "common good" advances that actions and policies should benefit the overall welfare of society, while utilitarianism holds that the morality of an action is synonymous to its ability to produce the least harm. From the news story, it is implied that ensuring access to abortion services for people with disabilities is

necessary to promote the common good. Restrictive abortion policies are seen as potentially detrimental to the autonomy, health, and overall well-being of disabled individuals. Families face difficult choices when access to safe and legal abortion services is limited, further emphasizing the importance of protecting reproductive rights and providing comprehensive support to disabled individuals and their families.

Taking all these ethical concepts or theories into account, the story overall delves into various issues related to abortion access for individuals with disabilities, ranging from significant concerns to seemingly minor obstacles like mobility and transportation. It provides valuable insights into the ethical dimensions surrounding abortion access for people with disabilities. The author raises awareness about the challenges faced by disabled individuals and advocates for policies that prioritize their well-being and autonomy.

While the article appropriately covers various ethical concepts, such as autonomy, and the common good, it should also address the principle of informed consent by emphasizing the importance of providing comprehensive medical information to patients prior to decision-making particularly in cases where abortion may carry a higher health risk compared to continuing the pregnancy (e.g., anesthesia complications or other risks specific to the individual's health condition). It is crucial for the article to delve deeper into whether women with disabilities have adequate access to the necessary information required to make informed decisions about terminating or continuing a pregnancy, while considering the potential health risks involved. Moreover, it is also worth noting that while the author interviewed women who could afford the medical procedure, a strong support system, or at least some knowledge of their rights, a more comprehensive perspective could have been achieved by including voices from individuals in marginalized economic positions who lack access to the aforementioned resources. By doing so,

the article could have provided a more inclusive portrayal of the diverse experiences faced by women with disabilities seeking abortion care.

Reference

Ducharme, J. (2023). *For People With Disabilities, Losing Abortion Access Can Be a Matter of Life or Death*. Time. <https://time.com/6248104/abortion-access-people-with-disabilities/>